

THE CHILD MARRIAGE RESTRAINT ACT, 1929.
ACT No. XIX OF 1929.¹

[1st October, 1929.]

An Act to restrain the solemnisation of child marriages.

WHEREAS it is expedient to restrain the solemnisation of child marriages:
It is hereby enacted as follows:—

Short title,
extent and
commence-
ment.

1. (1) This Act may be called the Child Marriage Restraint Act, [1929].

(2) It extends to the whole of British India, including British Baluchistan and the Sonthal Parganas.

Definitions.

(3) It shall come into force on the 1st day of April, 1930.

and applies also to—

- (a) all British subjects and servants of the Crown in any part of India; and
(b) all British subjects who are domiciled in any part of India ~~wherever~~ wherever they may be.

[or is about
to be]

a marriage means either of the parties whose marriage is thereby solemnised; and

(d) "minor" means a person of either sex who is under eighteen years of age.

Punishment
for male
adult below
twenty-one
years of age
marrying a
child.

3. Whoever, being a male above eighteen years of age and below twenty-one, contracts a child marriage shall be punishable with fine which may extend to one thousand rupees.

Punishment
for male
adult above
twenty-one
years of age
marrying a
child.

4. Whoever, being a male above twenty-one years of age, contracts a child marriage shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both.

Punishment
for solemnising a child
marriage.

5. Whoever performs, conducts or directs any child marriage shall be punishable with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both, unless he proves that he had reason to believe that the marriage was not a child marriage.

Punishment
for parent
or guardian
concerned
in a child
marriage.

6. (1) Where a minor contracts a child marriage, any person having charge of the minor, whether as parent or guardian or in any other capacity, lawful or unlawful, who does any act to promote the marriage or permits it to be solemnised, or negligently fails to prevent it from being solemnised,

* Applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications—See Notification, 1950.

Extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified—See N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

the person having charge of such minor has negligently failed to prevent the marriage from being solemnised.

7. Notwithstanding anything contained in section 25 of the General Clauses Act, 1897, or section 64 of the ^{Pakistan} Indian Penal Code, a Court sentencing an offender under section 3 shall not be competent to direct that, in default of payment of the fine imposed, he shall undergo any term of imprisonment.

8. Notwithstanding anything contained in section Criminal Procedure, 1898, no Court other than that of ~~trial~~ or a District Magistrate shall take cognizance of, under this Act.

under this Act.

9. No Court shall take cognizance of any offence under this Act after the expiry of one year from the date on which the offence was committed. ^{Mode of taking cognizance of offences.}

10. The provisions of section 203 of the Code of Criminal Procedure, 1973, shall apply to any offence under this Act shall, unless Preliminary Proceedings are in progress.

1898, either itself make an inquiry or cause a Magistrate of the first class to do so, if the court takes cognizance of any offence complained of, it may, in writing, at any

(1) When the Court takes cognizance of any offence under this Act upon a complaint made to it, it may for reasons to be recorded in writing, at any time after examining the complaint and before issuing process for compelling the attendance of the accused, require the complaint to execute a bond, with or without sureties, for a sum not exceeding one hundred rupees, as security for the payment of any compensation which the complaint may be directed to pay under section 250 of the Code of Criminal Procedure, 1898, and if such security is not furnished within such reasonable time as the Court may fix, the complaint shall

ver to
sue in-
action
prohibiting
marriage in
intraven-
on of this
t.

by the Court may be considered. ~~Nothing~~ mandating anything to the Court may, if satisfied from information laid before it through a complaint or otherwise that a child marriage in contravention of this Act has been arranged or is about to be solemnised, issue an injunction against any of the persons mentioned in section 3, 4, 5 and 6 of this Act prohibiting such marriage.

(2) No injunction under sub-section (1) shall be issued against any person unless the Court has previously given notice to such person, and has afforded him an opportunity to show cause against the issue of the injunction.

(3) The Court may either on its own motion or on the application of any person aggrieved rescind the order under sub-section (1).

new words "and the
onthal Parganas"
406

THE CHILD MARRIAGE RESTRAINT ACT, 1929.
ACT No. XIX OF 1929.¹

[1st October, 1929.]

An Act to restrain the solemnisation of child marriages.

WHEREAS it is expedient to restrain the solemnisation of child marriages;
It is hereby enacted as follows:—

Short title,
extent and
commence-
ment.

1. (1) This Act may be called the Child Marriage Restraint Act, [1929].
(2) It extends to the whole of British India, including British Baluchistan and the Sonthal Parganas.

Definitions.

- (3) It shall come into force on the 1st day of April, 1930.
(a) all subjects and servants of the Government in any part of India: and

[or is about
to be]

Punishm
for male
adult b
twenty
years
marr
child
Puni
for
adu
twenty-one
years of age
marrying a
child.

or with

Punishment
for solemn-
ising a child
marriage.

Punishment
for parent
or guardian
concerned
in a child
marriage

5. Whoever performs, conducts or with
punishable with simple imprisonment which may or
with fine which may extend to one thousand rupees, or with both, unless
he proves that he had reason to believe that the marriage was not a child
marriage.

6. (1) Where a minor contracts a child marriage, any person having
charge of the minor, whether as parent or guardian or in any other capacity,
lawful or unlawful, who does any act to promote the marriage or permits
it to be solemnised, or negligently fails to prevent it from being solemnised,
shall be punishable with simple imprisonment which may extend to one

* Applied to Phulera in the Excluded Area of Upper
Tanawal to the extent the Act is applicable in the
N.W.F.P., subject to certain modifications—
N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regu-
lation, 1950.

Extended to the Excluded Area of Upper Tanawal
(N.W.F.P.) other than Phulera with effect from such
date and subject to such modifications as may be
notified—
N.W.F.P. (Upper Tanawal) (Excluded Area)
Laws Regulation, 1950.

the person having charge of such minor has negligently failed to prevent the marriage from being solemnised.

7. Notwithstanding anything contained in section 25 of the General Clauses Act, 1897, or section 64 of the ^{Indian} Penal Code, a Court sentencing an offender under section 3 shall not be competent to direct that, in default of payment of the fine imposed, he shall undergo any term of imprisonment. Imprisonment not to be awarded for offences under section 3.

8. Notwithstanding anything contained in section 190 of the Code of Criminal Procedure, 1898, no Court other than that of a ~~Magistrate~~ ^{Magistrate of the First Class} shall take cognizance of, or try, any offence under this Act. Jurisdiction under this Act.

~~9. No Court shall take cognizance of any offence under this Act save upon complaint made within one year of the solemnisation of the marriage in respect of which the offence is alleged to have been committed.~~ Mode of taking cognizance of offences.

10. The Court taking cognizance of an offence under this Act shall, unless it dismisses the complaint under section 203 of the Code of Criminal Procedure, 1898, either itself make an inquiry under section 202 of that Code, or direct a Magistrate of the first class subordinate to it to make such inquiry. Preliminary inquiries into offences under this Act.

~~11. (1) At any time after examining the complainant and before issuing process for compelling the attendance of the accused, the Court shall, except for reasons to be recorded in writing, require the complainant to execute a bond, with or without sureties, for a sum not exceeding one hundred rupees, as security for the payment of any compensation which the complainant may be directed to pay under section 250 of the Code of Criminal Procedure, 1898; and if such security is not furnished within such reasonable time as the Court may fix, the complaint shall be dismissed.~~ Power to take security from complainant.

(2) A bond taken under this section shall be deemed to be a bond taken under the Code of Criminal Procedure, 1898, and Chapter XLII of that Code shall apply accordingly.

12. (1) Notwithstanding anything to the contrary contained in this Act, the Court may, if satisfied from information laid before it through a complaint or otherwise that a child marriage in contravention of this Act has been arranged or is about to be solemnised, issue an injunction against any of the persons mentioned in section 3, 4, 5 and 6 of this Act prohibiting such marriage.

(2) No injunction under sub-section (1) shall be issued against any person unless the Court has previously given notice to such person, and has afforded him an opportunity to show cause against the issue of the injunction.

(3) The Court may either on its own motion or on the application of any person aggrieved rescind or alter any order made under sub-section (1).

Application is received, the